

In T 74/14 the board held that to successfully challenge the decision of an opposition division not to admit documents into the proceedings on the grounds of prima facie lack of relevance, it is not enough merely to argue that they should in fact be considered relevant or that they could be used in an inventive step attack. Rather, it would be necessary to demonstrate that these documents are so manifestly relevant, and that the failure to recognise this was such an egregious misjudgement on the part of the opposition division, that the decision not to admit them constituted an unreasonable exercise of the opposition division's discretion.

The board in T 1467/11 observed that Art. 12(4) RPBA 2007 left the boards room for finding in specific cases that the facts were such that requests the opposition division had rightly refused to admit could nonetheless be admitted on appeal. However, it understood the review criteria laid down by the Enlarged Board in G 7/93 to mean that, where the opposition division had properly exercised its discretion in deciding not to admit amendments to a case, this was liable to result in their non-admission on appeal too unless facts justifying treating them differently could be established.

See also T 902/09, T 2576/12, T 241/13, T 366/19.

c) Discretion misused by the department of first instance

In T 1872/08 the opposition division did not use its discretion in a reasonable way by not admitting the additional comparative tests. Therefore, the board decided to overrule the decision of the opposition division in this respect and to admit into the proceedings these comparative tests, which the patentee resubmitted in its statement of grounds.

In T 1485/08 the board stated that the opposition division had not properly exercised its discretion in not admitting document (16T) for the sole reason that it was late-filed, without having examined its relevance or having considered any other criteria. Document (16T), which was resubmitted with the statement of grounds of appeal, was highly relevant as there were clear reasons to believe that it would prejudice the maintenance of the patent. The board decided, in the exercise of its discretion pursuant to Art. 12(4) RPBA 2007, not to hold document (16T) inadmissible.

3.4.4 Submissions admitted at first instance are part of the appeal proceedings

The issue in several decisions has been how far the boards can go in reviewing the admission of documents, requests or evidence in the first-instance proceedings. It is the boards' established case law that, on appeal against a decision taken by a department of first instance, it is not for the board to revisit the facts and circumstances of the case as if it were in that department's place and decide whether it would have exercised discretion in the same way (see chapter V.A.3.4.1 b) above).

In a number of decisions, it has been held that the EPC does not provide any legal basis for excluding on appeal documents, requests or evidence correctly admitted by the department of first instance, particularly if the contested decision was based on them (T 1852/11, T 1201/14, T 1227/14, T 525/15, T 1348/16, T 852/17, T 2049/16, T 1525/17,

T 110/18). In view of the very aim of the appeal proceedings to review the decision under appeal in a judicial manner according to Art. 12(2) RPBA 2020, such submissions are automatically part of the appeal proceedings (T 617/16, T 487/16, T 2603/18).

In T 2049/16 the opposition division admitted D20, which was filed by the opponent one month before oral proceedings, because it found it to be prima facie relevant. It was argued that the opposition division should not have admitted the document because its late filing constituted a tactical abuse of proceedings. The board, however, was not convinced that the opponent's behaviour could be deemed an abuse of proceedings. The board considered whether it was possible to reverse the admittance on appeal. The board was not aware of any explicit legal basis that would make it possible to retroactively exclude evidence that has been admitted into the proceedings and decided upon by the department of first instance.

In T 572/14 the board noted that it can hold inadmissible and hence disregard a party's submission in the appeal proceedings only on the basis of Art. 114(2) EPC and Art. 12(4) and 13 RPBA 2007. However, since document (21) was admitted by the opposition division and therefore became part of the opposition proceedings, it could not be excluded from the appeal proceedings pursuant to Art. 12(4) RPBA 2007 (see also T 467/08).

In T 1227/14, the board observed that the boards did not have the power to disregard on appeal submissions admitted by the opposition division in exercise of its discretion.

In T 104/17, the board could not immediately discern any legal basis for retroactively rejecting on appeal specific documents which had been admitted into the opposition proceedings and on which the contested decision had been based. Under Art. 12(1)(a) RPBA 2020, any such documents, having become part of the contested decision, were basically part of the appeal proceedings too. Art. 114(2) EPC did not appear to offer any basis for retroactive rejection either. Once the examination or opposition division had admitted a document, even a possibly late-filed one, and thus taken it into account in its decision, this fact could not be excluded from the proceedings or otherwise erased without repealing the entire decision and remitting the case for a new decision.

In T 2603/18 the board discussed the extent to which the admission of D23 into the opposition proceedings could be reviewed. The board held that, since D23 had then been cited as a basis for the contested decision at issue on appeal, it had become part of it. That alone meant it had to be considered in the appeal proceedings; otherwise, a full review of the contested decision would not be possible (see also T 26/13, T 1568/12, T 487/16). In the case in hand, therefore, a review of the opposition division's discretionary decision could not entail exclusion of D23, which consequently formed part of the proceedings. The board observed that some boards did nevertheless check whether the opposition division had erred in deciding to admit a document where this was alleged by a party (see T 1652/08, T 572/14, T 2197/11).

In T 467/15, the board held that the boards' discretion under Art. 12(4) RPBA 2007 explicitly covered **only** the rejection of facts, evidence or requests that could have but had

not been submitted in the first-instance proceedings or that had not been admitted into those proceedings. Consequently, if the opposition division had admitted a submission into the opposition proceedings within the bounds of its discretion, the board could not disregard it on appeal. It appeared to be debatable whether, if one of the parties so requested, a decision admitting an auxiliary request should still be reviewed on appeal as to whether the discretion had been exercised appropriately (a review to this end was undertaken in relation to admitted documents in T 572/14, T 1227/14, T 2197/11, T 1652/08, T 1209/05, for example), or whether it was not open to such review (see T 26/13, referring to T 1852/11) because an admitted request forming the basis for the contested decision could no longer be excluded from the proceedings on appeal even if the opposition division had exceeded the proper limits of its discretion in admitting that request.

In T 487/16 the appellant requested that D7 be excluded from the appeal proceedings. The board stated that since D7 was part of the opposition proceedings and the decision was based on D7, it was part of the appeal proceedings (see also Art. 12(2) RPBA 2020). Furthermore, considering that the aim of the appeal proceedings was to review the decision under appeal in a judicial manner and in view of the appellant's main request for maintenance of the patent as granted, which required a review of the decision with regard to the conclusion drawn inter alia on the basis of D7, the board saw no legal basis on which it could be excluded from the appeal proceedings. Thus, in this regard, the board confirmed the case law developed under RPBA 2007 (cf. T 26/13, T 1568/12, T 2603/18). For the sake of completeness, the board added that Art. 12(4) RPBA 2007 would not provide a basis for excluding D7 from the appeal proceedings either since the document was admitted into the proceedings by the opposition division.

Also in T 858/17 the board questioned whether it had any discretion at all to exclude from the appeal proceedings a claim request that had already been admitted by the opposition division and made the subject of the appealed decision (Art. 12(2) RPBA 2020; see also T 1227/14). The board held, that even assuming that it had the power to exclude something from the appeal proceedings that had been admitted by the opposition division and taking decision G 7/93 into account, the board saw in the case in hand no reasons for excluding the main request from the appeal proceedings.

In T 467/08, the board refused the request to disregard on appeal comparative test results submitted in the opposition proceedings, on the basis that neither the EPC itself nor the RPBA provided for such a decision. The boards merely had competence to review a decision taken by the opposition division on whether or not to admit late-filed submissions, documents and requests filed in those earlier proceedings, or to decide themselves whether or not to admit submissions, documents and requests filed on appeal.

In T 1525/17, the opposition division had taken account of late-filed citations E5 and E6 throughout its entire substantive examination of inventive step, but then not admitted them into the proceedings. The board held that it was inherently contradictory to take late-filed documents as a basis for an in-depth examination of the patentability requirements, and so consider them as to their substance, yet at the same time declare them not admitted. As a rule, that documents had been examined as to their substance meant that a board

could fully review their examination on appeal or at least that it was barred from holding them inadmissible under Art. 12(4) RPBA 2007 on the basis that they had not been admitted by the department of first instance, when their purported non-admission had in fact been inherently contradictory and so amounted to an improper exercise of discretion (see T 2324/14 and T 2026/15).

Also in T 346/16 the board took the view that it was necessary to take the documents into consideration when reviewing the opposition division's decision with respect to novelty and inventive step since the documents de facto formed part of the contested decision's reasoning despite the explicit decision by the opposition division to exclude them.

3.4.5 Review of an opposition division's discretionary decision (not) to admit a new ground for opposition

In accordance with established case law, an opposition division has the discretionary power to introduce of its own motion a fresh ground for opposition (Art. 114(1) EPC). With regard to the opposition proceedings the Enlarged Board of Appeal stated in G 10/91 (OJ 1993, 420) that exceptionally, the opposition division may in application of Art. 114(1) EPC consider other grounds for opposition which, prima facie, in whole or in part would seem to prejudice the maintenance of the European patent. With regard to the appeal proceedings the Enlarged Board of Appeal held that fresh grounds for opposition may be considered in appeal proceedings only with the approval of the patentee. On the extent to which an opposition division should examine new grounds for opposition, see chapter IV.C.3.3.

The board's review of the discretionary decision of the opposition division is essentially limited to ensuring that the opposition division did not use this power unreasonably (T 1340/15).

In T 1119/05 the objection under Art. 100(b) EPC was already raised, although belatedly, before the opposition division which decided not to admit this late-filed ground. The board introduced the documents referred to in support of the objection in order to assess whether the opposition division had exercised its discretion properly. Having found no indication that the opposition division had exercised its discretion in an unreasonable way, the board saw no reason to reverse the decision of the first instance (see also T 839/14).

The board in T 109/08 held that, when reviewing an opposition division's exercise of discretion in deciding under Art. 114(2) EPC not to admit a late-filed ground for opposition, the boards had the power to overrule its decision if they concluded that it was based on manifestly incorrect technical assumptions or on an erroneous approach to applying the ground in question, since that would amount to a misuse of the discretionary power under Art. 114(2) EPC. The case was remitted to the department of first instance for a new decision.

In T 1286/14 the board addressed the limited scope for reviewing exercises of discretion to refuse a "fresh ground for opposition" where the proprietor objects to its admission on appeal. In the case at issue, the opposition division had considered a late-filed ground

irrelevant and refused to admit it. In such circumstances, it was sufficient for the board to establish that there was evidence that the opposition division had actually examined whether the ground was prima facie relevant and given reasons for its finding on this. So, instead of reviewing whether the opposition division had examined such prima facie relevance "correctly" in substance, it merely had to check that such an examination had demonstrably been conducted. In other words, its duty to review the exercise of discretion was limited. Citing G 10/91 (OJ 1993, 420), it thus refrained from examining the substance of the fresh ground, thereby following the approach taken in T 736/95, OJ 2001, 191; T 1519/08 and T 1592/09 and rejecting that entailing a thorough review of the earlier exercise of discretion on its merits, as taken in e.g. T 1053/05, T 1142/09 and T 620/08.

In T 339/18 the board followed the rationale of T 1286/14 and concluded that the new ground for opposition could not be admitted into the appeal proceedings without the consent of the patent proprietor.

In T 21/15, the issue was whether to admit a newly asserted ground for opposition into the appeal proceedings. The board referred to the view taken in T 1286/14 that, if a ground for opposition not admitted by the opposition division was invoked again in the statement of grounds of appeal, it had to be deemed a "fresh ground for opposition" as per G 9/91 and G 10/91 (OJ 1993, 408 and 420) and could be admitted on appeal only with the patent proprietor's consent. In the case in hand, that would mean that the board was barred from admitting the ground for opposition asserted by the appellant into the appeal proceedings, since the respondent had not given its consent. In T 620/08, however, a different board had considered that the term "fresh ground for opposition" meant one relied on for the first time on appeal and did not cover a late-filed ground for opposition that had explicitly not been admitted into the proceedings after being thoroughly addressed in the contested decision. If that view were taken in the case in hand, admission on appeal of the ground for opposition not admitted by the opposition division would be at the board's discretion under Art. 12(4) RPBA 2007. The patent proprietor's consent might then be a further criterion to be factored into the board's exercise of discretion under Art. 12(4) RPBA 2007. It was decided in the case in hand not to admit the ground for opposition at issue.

In T 178/16 the board stated that even if a board of appeal is not barred from considering a ground for opposition not considered by the opposition division, they have the power to hold inadmissible facts, evidence or requests, which were not admitted in the first instance proceedings pursuant to Art. 12(4) RPBA 2007. The board considered this to be in line with T 21/15.

In T 1969/17 the board noted that, according to T 986/93 and T 620/08 a board of appeal was at least not barred from considering a late-filed ground for opposition which had been disregarded by the opposition division if it was of the opinion that the opposition division exercised its discretion wrongly in this respect. See also T 22/15.

3.4.6 Review of discretion – stay of proceedings

In J 1/16, the applicant had appealed against the Legal Division's decision not to resume stayed grant proceedings until further notice. The Legal Board stated in its catchword: